

Amendment No. 1 to HB0938

Todd
Signature of Sponsor

AMEND Senate Bill No. 869

House Bill No. 938*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 70-4-113, is amended by deleting the section and substituting:

(a) Except as otherwise expressly provided, it is unlawful for a person to use any pitfall, deadfall, cage, snare, trap, net, baited hooks, poison, chemicals, explosives, set guns, spotlights, electric lights or torches, bait, which includes any grain or mixture of ingredients, used as or for food purposes or to lure or attract wildlife to a particular area for the purpose of being killed or taken, or other devices for the purpose of killing, injuring, or capturing birds or animals protected by the wildlife laws of this state.

(b)

(1) This section does not apply to a person hunting whitetail deer with the aid of bait on privately owned or leased lands if the person has purchased and is in possession of a valid deer bait privilege license.

(2) A deer bait privilege license required by this section must be obtained in the same manner as an annual hunting license.

(3) A person who is exempt from purchasing a hunting license is not exempt from the requirement to purchase a deer bait privilege license pursuant to this section. All hunters in a hunting party who hunt over bait are required to purchase and have in their possession a deer bait privilege license.

(4) The agency may, without refund, suspend the use of a deer baiting privilege and adopt rules to manage the feeding of wildlife populations on a

county, regional, or statewide basis to prevent the spread of diseases among wildlife by announcing the suspension in a news release.

(5) The initial fee for a deer bait privilege license is fifty dollars (\$50.00) for a resident and one hundred dollars (\$100) for a non-resident. This fee may be adjusted by the commission from time to time in accordance with the applicable provisions of this title.

(6) The commission shall promulgate rules to effectuate this section no later than August 1, 2026. Such rules must establish what constitutes acceptable bait, the amount of bait that may be used, and the conditions of the use of the deer bait privilege license created by this section.

(c) The executive director or the executive director's designees may use any chemical, biological substance, poison, or device under controlled conditions to capture or kill a bird or animal for scientific, propagating, enforcement, humane, or rescue purposes, or when it is considered necessary by the executive director to reduce or control any species that may be detrimental to human safety, health, or property. The executive director shall not take an action directed to the control of rabies or other diseases spread from wildlife to human beings until the following conditions have been met:

(1) The county board of health in the affected county met in open session and, by appropriate resolution, declared that a condition detrimental to human safety, health, or property exists within the affected county;

(2) An official quarantine by the county board of health has been established on all dogs, cats, and pets in the county; and

(3) An official request has been made by the county board of health, through and with the concurrence of the commissioner of health, to the executive director to take such action as is necessary by the executive director or the executive director's designees and by such means as are authorized in this

section to bring the disease under control in the affected county. This subsection (c) is effective in every county in this state.

(d) A violation of this section is a Class C misdemeanor; provided, that spot, electric, or torch lights may be used in the hunting and taking of raccoons, opossums, and frogs, and box traps may be used for the taking of rabbits during the open shooting season for the same. (e) As used in this section, "pets" means domesticated animals normally maintained in or near the household of its owner;

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.